

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SANDRA BRADLEY,

Plaintiff,

- against -

THE CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT; P.O. LENA GARCIA,
Shield No. 25975; P.O. CRUZ, Shield No. 23999;
P.O. GIBSON, Shield No. unknown; P.O. TAVERAS,
Shield No. 4870; P.O. GILLIS, Shield No. 5086; and
other unknown named officers of the NEW YORK
CITY POLICE DEPARTMENT,

Defendants.

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YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 9, 2014

KREISBERG & MAITLAND, LLP

Gary Maitland /rk
Gary Maitland
Attorneys for Plaintiff
75 Maiden Lane, Suite 603 New
York, New York 10038 Telephone:
(212) 629-4970

Defendants' addresses:
See Annexed Rider

Index No.:

Plaintiff designates
BRONX COUNTY
as the Place of Trial

SUMMONS

Basis of Venue:
Plaintiff's Residence
Bronx County

Rider

THE CITY OF NEW YORK

c/o Corporation Counsel

100 Church Street

New York, New York 10001

NEW YORK CITY POLICE DEPARTMENT

One Police Plaza

New York, New York 10038

P.O. LENA GARCIA, Shield No. 25975

c/o 43rd Precinct

900 Fteley Ave.

Bronx, New York 10473

P.O. CRUZ, Shield No. 23999

c/o 43rd Precinct

900 Fteley Ave.

Bronx, New York 10473

P.O. GIBSON, Shield No. unknown

c/o 43rd Precinct

900 Fteley Ave.

Bronx, New York 10473

P.O. TAVERAS, Shield No. 4870

c/o 43rd Precinct

900 Fteley Ave.

Bronx, New York 10473

P.O. GILLIS, Shield No. 5086

900 Fteley Ave.

Bronx, New York 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SANDRA BRADLEY,

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Index No.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT; P.O. LENA GARCIA,
Shield No. 25975; P.O. CRUZ, Shield No. 23999;
P.O. GIBSON, Shield No. unknown; P.O. TAVERAS,
Shield No. 4870; P.O. GILLIS, Shield No. 5086; and
other unknown named officers of the NEW YORK
CITY POLICE DEPARTMENT,

Defendants.

-----X
Plaintiff, Sandra Bradley ("Ms. Bradley"), by her attorneys, Kreisberg & Maitland, LLP,
as and for her Verified Complaint herein, hereby alleges the following:

PRELIMINARY STATEMENT

1. Ms. Bradley brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§1983 and §1988 for violation of her civil rights, as said rights are secured by said statutes and the New York State and United States Constitutions.

JURY DEMAND

2. Ms. Bradley respectfully demands a trial by jury of all issues and causes of action in this matter.

THE PARTIES

3. Ms. Bradley is and was at all relevant times hereto a citizen of the United States and a resident of the County of Bronx and State of New York.

4. Defendant City of New York ("City") is a municipal corporation, incorporated pursuant to New York State law, and amenable to suit in its own name.

5. Defendant New York City Police Department ("NYPD") is a charter agency of the City authorized to perform law enforcement functions in and for the City. Defendant City operates and maintains the NYPD, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

6. Defendant Police Officer Lena Garcia, Shield No. 25975 ("P.O. Garcia") is and was at all times relevant hereto an employee of the NYPD and was acting in the course of her employment under the supervision of said department and according to her official duties.

7. Defendant Police Officer Cruz, Shield No. 23999 ("P.O. Cruz") is and was at all times relevant hereto an employee of the NYPD and was acting in the course of his employment under the supervision of said department and according to his official duties.

8. Defendant Police Officer Gibson, Shield No. unknown ("P.O. Gibson") is and was at all times relevant hereto an employee of the NYPD and was acting in the course of his employment under the supervision of said department and according to his official duties.

9. Defendant Police Officer Taveras, Shield No. 4870 ("P.O. Taveras") is and was at all times relevant hereto an employee of the NYPD and was acting in the course of his employment under the supervision of said department and according to his official duties.

10. Defendant Police Officer Gillis, shield No. 5086 ("P.O. Gillis") is and was at all times relevant hereto an employee of the NYPD and was acting in the course of his employment under the supervision of said department and according to his official duties.

11. Defendants, Police Officer John Doe et al., refers to unknown named police officers who were at all relevant times hereto employees of defendant NYPD and were acting during the course of their employment and were involved in or failed to intervene and prevent the wrongdoing complained of herein, and were acting under the supervision of said department.

STATEMENT OF FACTS

12. On or about January 17, 2013, at approximately 7:15 p.m., Ms. Bradley was lawfully upon the sidewalk at Elder Avenue and Westchester Avenue in the County of Bronx and State of New York.

13. On that date, time and place, NYPD officers, including P.O.s Garcia, Cruz, Gibson, Taveras, and Gillis, approached Ms. Bradley, physically detained her, and forcibly performed a warrantless search of her person.

14. The officers had no probable cause to believe that Ms. Bradley had committed a crime and/or was in any way acting unlawfully, when they approached her, as aforesaid.

15. The officers had no probable cause to believe that Ms. Bradley had committed a crime and/or was in any way acting unlawfully, when they physically detained and searched her.

16. Ms. Bradley did not consent to the above-mentioned illegal search of her person by defendants.

17. No contraband and/or evidence of criminality was recovered from Ms. Bradley as a result of the above-mentioned illegal search by defendants.

18. When Ms. Bradley inquired as to the reason for her detention, she was handcuffed, accused of having been involved in a drug transaction, placed under arrest, and taken to the 43rd Precinct, all without notice of any violation.

19. Ms. Bradley remained in custody at the 43rd Precinct for several hours.
20. While at the 43rd Precinct, Ms. Bradley was subjected to a strip search by the NYPD.
21. Ms. Bradley did not consent to the above-mentioned strip search by the NYPD.
22. No contraband and/or evidence of criminality was recovered from Ms. Bradley as a result of the above-mentioned strip search by the NYPD.
23. After the above-mentioned strip search was performed, Ms. Bradley was further detained for several more hours in a holding cell in the 43rd Precinct.
24. Thereafter, Ms. Bradley was released, without receiving any summons, desk appearance ticket, or notice of any violation of law.
25. As a result of the foregoing, Ms. Bradley has suffered and continues to suffer psychological and emotional stress, injuries and damage as a result of the events described herein.

PROCEDURAL PREREQUISITES

26. On February 14, 2013, Ms. Bradley filed a Notice of Claim against the defendants with the New York City Comptroller's Office, as required by General Municipal Law §50e.
27. The aforesaid Notice of Claim was served upon the defendants within 90 days after the plaintiff's claims accrued, as set forth and complained of herein.
28. More than thirty days have elapsed since the service of the Notice of Claim and Notice of Intention to Sue upon the defendants.
29. The defendants and the Office of the Comptroller have failed, neglected, and refused to pay, settle, compromise, or adjust the claim of the plaintiff herein.
30. On November 18, 2013, Ms. Bradley duly submitted to the City's inquiry under

oath concerning her claims as required by General Municipal Law Section 50-h.

31. This action has been commenced within one year and ninety days after the accrual of Ms. Bradley's causes of action.

32. Ms. Bradley has fully complied with the statutory conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION
FALSE ARREST

33. Ms. Bradley repeats and realleges paragraphs numbered "1" through "32" hereof as though set forth fully at length herein.

34. Defendants had no probable cause to believe that plaintiff had committed a crime and plaintiff did not engage in any conduct that warranted her arrest.

35. As a result of the aforesaid conduct by defendants, Ms. Bradley was subjected to an illegal, improper and false arrest by the defendants; taken into custody; and caused to be falsely imprisoned, detained, and confined without probable cause, privilege, or consent.

36. By reason of their aforesaid conduct, defendants falsely arrested Ms. Bradley and thereby violated her rights under New York State law and under the Fourth and Fourteenth Amendments to the United States Constitution and Article I Section VI of the New York State Constitution.

37. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Bradley suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; pain and suffering and loss of enjoyment of life; economic harm; sustained severe mental anguish and nervous shock and has been

damaged accordingly.

SECOND CAUSE OF ACTION
FALSE IMPRISONMENT

38. Ms. Bradley repeats and realleges paragraphs numbered "1" through "37" hereof as though set forth fully at length herein.

39. By reason of defendants' aforesaid conduct, Ms. Bradley was detained without her consent and defendants knew she was detained against her consent.

40. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Bradley suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; pain and suffering and loss of enjoyment of life; economic harm; sustained severe mental anguish and nervous shock and has been damaged accordingly.

THIRD CAUSE OF ACTION
ASSAULT AND BATTERY

41. Ms. Bradley repeats and realleges paragraphs numbered "1" through "40" hereof as though set forth fully at length herein.

42. By reason of defendants' aforesaid acts, specifically during the course of their false arrest, false imprisonment, and strip search of Ms. Bradley, defendants committed the torts of assault and battery upon her.

43. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Bradley suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; pain and suffering and loss of enjoyment of life; economic harm; sustained severe mental anguish and nervous shock and has been

damaged accordingly.

**FOURTH CAUSE OF ACTION —
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

44. Ms. Bradley repeats and realleges paragraphs numbered "1" through "43" hereof as though set forth fully at length herein.

45. By their foregoing acts---specifically their false arrest, unlawful imprisonment, and assault and battery of Ms. Bradley, defendants intended to and did cause her emotional distress and psychological injuries.

46. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. Bradley suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; pain and suffering and loss of enjoyment of life; economic harm; sustained severe mental anguish and nervous shock and has been damaged accordingly.

**FIFTH CAUSE OF ACTION
FAILURE TO INTERVENE**

47. Ms. Bradley repeats and realleges paragraphs numbered "1" through "46" hereof as though set forth fully at length herein.

48. Each defendant police officer had an affirmative duty to intervene on Ms. Bradley's behalf to prevent the violation of her constitutional rights by their fellow officers.

49. Each defendant police officer failed to intervene on Ms. Bradley's behalf to prevent the violation of her constitutional rights despite having had an affirmative obligation and a realistic and timely opportunity to do so.

50. As a result of the aforementioned conduct of the individual defendants, Ms.

Bradley's constitutional rights were violated and she was subjected to excessive force and sustained physical, psychological and emotional injuries.

WHEREFORE, plaintiff, Sandra Bradley, demands judgment in an amount to be determined at trial against the defendants under the first cause of action in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter; under the second cause of action in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter; under the third cause of action in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter; under the fourth cause of action in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter; and under the fifth cause of action in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: New York, New York
April 9, 2014

Gary Maitland / RF
Gary Maitland

VERIFICATION

STATE OF NEW YORK}

ss:

COUNTY OF NEW YORK}

Gary Maitland, being duly sworn deposes and states as follows:

I have read the foregoing Verified Complaint and know the contents thereof. The same is true to my knowledge, except as to those matters therein, which are alleged upon information and belief. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: records, reports, and correspondence. I make this Verification rather than plaintiff because plaintiff does not reside in the county in which I maintain my office. I affirm that the foregoing statements are true, under the penalties of perjury.

In Witness Whereof, Gary Maitland has hereunto set his hand and seal on this 9th day of April, 2014.

Gary Maitland /s/
Gary Maitland